

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	22CV404026	Lorena Ayala vs. Athiya Javid, MD., et.al.	Defendant moved this court to deem admissions propounded on plaintiff admitted. Defendant propounded admissions on Plaintiff in December of 2025. Plaintiff never responded. Defendant's motion is GRANTED. Defendant's motion for sanctions are GRANTED.
9:00 3	23CV421635	Tao Lin vs. Amazon.com Services	See below.
9:00 4	24CV432814	Alonzo Gallaread v. Erik Montgomery, et. al.	Defendant requests two further testing of Plaintiffs. Although Court does have the discretion to order further testing of Plaintiffs, it appears that Plaintiffs have already endured significant and thorough neurological and mental testing. Defendant fails to show good cause as to why further testing is needed. Defendant's motion is DENIED.
9:00 5-6	24CV443183	Shenna Huynh vs REDDIS LABS, INC.	Plaintiff moves this court to compel disposition of expert witness and sanctions. Although it appears that Defendant has produced the expert witness, Defendant took over one year to produce the witness and only produced the witness after Plaintiff filed its motion. Although the petition to compel may be moot at this point, Plaintiff's motion for sanctions is GRANTED.
9:00 7	24CV449389	Samita Bhandary vs. Agradoot Ghatak, et.al.	Plaintiff moves this court to vacate its previous order denying reconsideration of courts previous order strike plaintiff's complaint without leave to amend. The Court finds that the previous court engaged in a thorough analysis in rendering both opinions to strike the complaint and to deny reconsideration. Plaintiff's motion is DENIED.
9:00 8	24CV455357	Corey Geroy vs. Ford Motor Company, et.al.	Defendant moves this court for summary adjudication on Plaintiff's sixth cause of action alleging fraudulent inducement. No opposition was filed against this motion. Defendant's motion is GRANTED.
9:00 9	24CV453537	Brandon Hillburn vs. Ford Motor Company, et.al.	Case to be continued.
9:00 10	24CV454552	Robert Busto vs. Ford Motor Company, et.al.	See below
9:00 11	26CV490111	Zhan Ping Ye, et.al. vs. Board of Directors of Summerton Condominium Association, et.al.	Plaintiffs request a preliminary injunction from Defendants imposing a \$14,855.31 emergency assessment. Defendants comprise a Homeowner's Association which determined an emergency assessment per condominium unit for health and safety issues. Court determines that the assessment was not arbitrary and that Plaintiff's are not likely to prevail. Plaintiff's motion for a preliminary injunction is DENIED.
9:01 1	25CV465961	Mariner Finance, LLC vs. Vickie Lee Hunter	Defendant's attorney moves this court to relieve himself as counsel. No objection was filed. Defendant's attorney's motion is GRANTED.
9:01 2	25CV466259	Purvika Patel vs. Hung Dinh	Defendant moves this court to accept Elizabeth Favoro as pro hac vice counsel for Defendant. No opposition was filed and Ms. Favoro satisfies the statutory criteria. Defendant's motion is GRANTED.

Calendar Line 3

Case Name: *Lin v. Amazon.com Services, LLC*

Case No.: 23CV421635

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

On August 22, 2023, plaintiff Tao Lin (“Plaintiff”) filed a form complaint that did not include any causes of action. On February 21, 2024, after defendant Amazon.com Services LLC (“Defendant”) demurred, Plaintiff filed a first amended complaint (“FAC”) that alleged a cause of action for breach of contract (see FAC, first cause of action for breach of contract, referring to Attachments BC-2 and BC-4) which includes an attachment that lists three bullet points: breach of employment contract, employment retaliation and unlawful demand for employment repayment. Defendant for summary judgment on the FAC, or, in the alternative, moves for summary adjudication of each cause of action.

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION

Defendant’s burden on summary judgment

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted; emphasis added.)